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AS AMENDED

By: Strom of the House

Thompson of the Senate

[professions and occupations - construction skilled
trade education - contract terms - effective date]

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1000.4a, as amended by Section 3, Chapter 185, O.S.L. 2023 (59 O.S. Supp. 2024, Section 1000.4a), is amended to read as follows:

1. Receive and convey information relating to the skilled trades regulated by the Construction Industries Board including, but not limited to, workforce development; and

2. Enter into contracts with the Oklahoma Department of Career and Technology Education ~~or, any Oklahoma State Board of Career and Technology Education fully accredited vocational or technical school, or any accredited~~ system of education institution in ~~the State of Oklahoma~~ this state receiving state appropriations and

1 offering programs in secondary ~~and~~ or postsecondary instruction that
2 provide electrical, mechanical, plumbing or roofing trade coursework
3 for any of the following purposes, or combination thereof:

4 a. developing and implementing instructional courses on
5 Oklahoma Statutes and rules that govern the
6 electrical, mechanical, plumbing and roofing trades,
7 which courses can be in conjunction with instruction
8 in performing trade work or instruction on statewide-
9 adopted trade codes, or both, for the advancement of
10 the electrical, mechanical, plumbing and roofing
11 trades, or

12 b. developing and implementing a workforce development
13 program that will create interest in the pursuit of a
14 skilled trade career. The workforce development
15 program may consist of, but ~~is~~ shall not be limited
16 to, use of the Internet, community and school
17 presentations, ~~and~~ research and instruction on the
18 electrical, mechanical, plumbing and roofing trades,
19 and may be implemented through public awareness and
20 public information campaigns to promote skilled trades
21 and skilled trade careers as provided in this section.

22 B. All contracts pursuant to this section shall be approved by
23 the Construction Industries Board in accordance with the Oklahoma
24 Open Meeting Act. Costs of the contracts for education and

1 workforce development programs shall be paid from the Skilled Trade
2 Education and Workforce Development Fund ~~established herein~~ created
3 in subsection E of this section and funded by administrative fines
4 or penalties as described in this section. Applications for
5 proposals are to be submitted to the Board on forms provided
6 requiring sufficient justification and information to evaluate
7 costs, return on investment, value, and viability of the proposal.
8 Any contracts will include the requirement that the recipient of the
9 funds will, upon the completion of the contract, provide a written
10 report to the Board providing an accounting of expenditures,
11 describing an explanation of the funds used for the services
12 provided and the success of outreach demonstrating a return on the
13 investment including, but not limited to, an accounting of
14 accomplishments.

15 C. Fines or penalties collected by the Board and deposited in
16 the Oklahoma Mechanical Licensing Revolving Fund, the Electrical
17 Revolving Fund, the Plumbing Licensing Revolving Fund and the
18 Roofing Contractor Registration Revolving Fund may be transferred to
19 the Skilled Trade Education and Workforce Development Fund created
20 in subsection E of this section for the following purposes:

21 1. To develop instructional materials on Oklahoma laws,
22 statutes and rules, as they relate to the plumbing, mechanical,
23 electrical and roofing trades and state licensing standards;
24

1 2. To cover the cost of equipment, materials, personnel and any
2 other costs of developing and implementing the trade curriculum; and

3 3. To cover the cost of equipment, materials, personnel and any
4 other costs of developing and implementing the workforce development
5 program used to promote the plumbing, mechanical, electrical and
6 roofing trades as a career in Oklahoma.

7 D. The Skilled Trade Education and Workforce Development Fund
8 monies shall be used only for the advancement of trade-related
9 education and workforce development, and only if available based
10 upon statutory limitations.

11 E. 1. There is hereby created in the State Treasury a
12 revolving fund for the Construction Industries Board to be
13 designated the "Skilled Trade Education and Workforce Development
14 Fund". The fund shall be a continuing fund, not subject to fiscal
15 year limitations. The fund shall consist of an annual transfer of
16 fully adjudicated fine revenue received in the Oklahoma Mechanical
17 Licensing Revolving Fund, Electrical Revolving Fund, Plumbing
18 Licensing Revolving Fund or Roofing Contractor Registration
19 Revolving Fund as determined pursuant to this section. Funds may be
20 transferred only from the prior fiscal year.

21 2. If actual receipts, not including fine receipts, exceed
22 actual expenses and outstanding encumbrances, then one hundred
23 percent (100%) of all fully adjudicated fine revenue received shall
24 be transferred from each specific trade revolving fund: the

1 Oklahoma Mechanical Licensing Revolving Fund, Electrical Revolving
2 Fund, Plumbing Licensing Revolving Fund or Roofing Contractor
3 Registration Revolving Fund.

4 3. If at any time the receipts in the Oklahoma Mechanical
5 Licensing Revolving Fund, Electrical Revolving Fund, Plumbing
6 Licensing Revolving Fund or Roofing Contractor Registration
7 Revolving Fund, not including fine receipts, are less than actual
8 expenses and outstanding encumbrances, then the difference of fine
9 receipts over actual expenses and outstanding encumbrances, if any,
10 shall be transferred.

11 4. If at any time the annual receipts in the Oklahoma
12 Mechanical Licensing Revolving Fund, Electrical Revolving Fund,
13 Plumbing Licensing Revolving Fund or Roofing Contractor Registration
14 Revolving Fund, including fine receipts, are less than the actual
15 expenses and outstanding encumbrances, there shall be no transfer of
16 funds for that period.

17 5. All monies accruing to the credit of the Skilled Trade
18 Education and Workforce Development Fund may be budgeted and
19 expended by the Construction Industries Board for workforce
20 development as it relates to the skilled trades and to contract for
21 the services identified in this act. Expenditures from the fund
22 shall be made upon warrants issued by the State Treasurer against
23 claims filed as prescribed by law with the Director of the Office of
24 Management and Enterprise Services for approval and payment.

1 6. All unexpended or outstanding Skilled Trade Education and
2 Workforce Development Funds from any written agreement where work or
3 services have not been previously approved by specific quote or cost
4 estimate and have not been performed within eighteen (18) months of
5 the date the agreement was signed are hereby released from the
6 agreement and are available for future agreements approved by the
7 Board pursuant to this act, except for specific quotes, estimates,
8 or invoices that previously have been approved for payment,
9 performance has been initiated, and completed within twenty-four
10 (24) months of the signed agreement.

11 SECTION 2. This act shall become effective November 1, 2025.

12 COMMITTEE REPORT BY: COMMITTEE ON ECONOMIC DEVELOPMENT, WORKFORCE
13 AND TOURISM
14 April 15, 2025 - DO PASS AS AMENDED
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